

Section 181. (Powers of State Commissions to make regulations): --- (1) The State Commissions may, by notification, make regulations consistent with this Act and the rules generally to carry out the provisions of this Act.

(2) In particular and without prejudice to the generality of the power contained in sub-section (1), such regulations may provide for all or any of the following matters, namely: -

- (a) period to be specified under the first proviso of section 14;
- (b) the form and the manner of application under sub-section (1) of section 15;
- (c) the manner and particulars of application for licence to be published under sub-section (2) of section 15;
- (d) the conditions of licence section 16;
- (e) the manner and particulars of notice under clause(a) of sub-section (2) of section 18;
- (f) publication of the alterations or amendments to be made in the licence under clause (c) of sub-section (2) of section 18;
- (g) levy and collection of fees and charges from generating companies or licensees under sub-section (3) of section 32;
- (h) rates, charges and the term and conditions in respect of intervening transmission facilities under proviso to section 36;
- (i) payment of the transmission charges and a surcharge under sub-clause (ii) of clause(d) of sub-section (2) of section 39;

- (j) reduction ¹[***] of surcharge and cross subsidies under second proviso to sub-clause (ii) of clause (d) of sub-section (2) of section 39;
- (k) manner and utilisation of payment and surcharge under the fourth proviso to sub-clause(ii) of clause (d) of sub-section (2) of section 39;
- (l) payment of the transmission charges and a surcharge under subclause(ii) of clause (c) of section 40;
- (m) reduction ²[***] of surcharge and cross subsidies under second proviso to sub-clause (ii) of clause (c) of section 40;
- (n) the manner of payment of surcharge under the fourth proviso to sub-clause (ii) of clause (c) of section 40;
- (o) proportion of revenues from other business to be utilised for reducing the transmission and wheeling charges under proviso to section 41;
- (p) reduction ²[***] of surcharge and cross-subsidies under the third proviso to sub-section (2) of section 42;
- (q) payment of additional charges on charges of wheeling under subsection (4) of section 42;
- (r)) guidelines under sub-section (5) of section 42;
- (s) the time and manner for settlement of grievances under sub-section (7) of section 42;
- (t) the period to be specified by the State Commission for the purposes specified under sub-section (1) of section 43;
- (u) methods and principles by which charges for electricity shall be fixed under sub-section (2) of section 45;

¹ The words “and elimination” omitted by Act 26 of 2007, Sec. 21 (w.e.f. 15th June 2007).

² The words “and elimination” omitted by Act 26 of 2007, Sec. 21 (w.e.f. 15th June 2007).²
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- (v) reasonable security payable to the distribution licensee under sub-section (1) of section 47;
- (w) payment of interest on security under sub-section (4) of section 47;
- (x) electricity supply code under section 50;
- (y) the proportion of revenues from other business to be utilised for reducing wheeling charges under proviso to section 51;
- (z) duties of electricity trader under sub-section (2) of section 52;
- (za) standards of performance of a licensee or a class of licensees under sub-section (1) of section 57;
- (zb) the period within which information to be furnished by the licensee under sub-section (1) of section 59;
- ¹[(zc) the manner of reduction of cross-subsidies under clause (g) of section 61;]
- (zd) the terms and conditions for the determination of tariff under section 61;
- (ze) details to be furnished by licensee or generating company under sub-section (2) of section 62;
- (zf) the methodologies and procedures for calculating the expected revenue from tariff and charges under sub-section (5) of section 62;
- (zg) the manner of making an application before the State Commission and the fee payable therefor under sub-section (1) of section 64;
- (zh) issue of tariff order with modifications or conditions under subsection(3) of section 64;
- (zi) the manner by which development of market in power including trading specified under section 66;

¹ Subs. by Act 26 of 2007, Sec.21 (w.e.f. 15th June 2007).

- (zj) the powers and duties of the Secretary of the State Commission under sub-section (1) of section 91;
 - (zk) the terms and conditions of service of the secretary, officers and other employees of the State Commission under sub-section (2) of section 91;
 - (zl) rules of procedure for transaction of business under sub-section (1) of section 92;
 - (zm) minimum information to be maintained by a licensee or the generating company and the manner of such information to be maintained under sub-section (8) of section 128;
 - (zn) the manner of service and publication of notice under section 130;
 - (zo) the form of preferring the appeal and the manner in which such form shall be verified and the fee for preferring the appeal under sub-section (1) of section 127;
 - (zp) any other matter which is to be, or may be, specified.
- (3) All regulations made by the State Commission under this Act shall be subject to the condition of previous publication.